

Legal Report – Ravi Kumar v. BESCOM

1. Facts

- ****Complainant:**** Ravi Kumar, domestic consumer, Bengaluru Urban LT supply
- ****Incident:**** Seven-day outage starting before 3 Mar 2026
- ****Written complaint:**** 3 Mar 2026, BESCOM docket No. 456789
- ****Response:**** Acknowledged; no restoration or compensation to date

2. Applicable Law

- Karnataka Electricity Supply Code Regulations, 2022 ("Supply Code")
- Consumer Protection Act, 2019 ("CPA 2019")

3. Meritorious Claims

3.1 Statutory Service Deficiency – Supply Code Reg. 34

Reg. 34 fixes a ****mandatory 24-hour restoration ceiling**** for urban LT faults. Exceeding it ipso facto constitutes deficiency. BESCOM's Citizen Charter repeats this timeline, reinforcing the obligation.

Relief available:

- Mandatory compensation under Reg. 34(5): ■50 per day of delay after the first 24 h → ■300 for six excess days
- Direction for early restoration
- Cost of proceedings

3.2 Consumer-Protection Liability – CPA 2019 §2(11) & §49

An acknowledged complaint plus failure to cure within the statutory window is *****"deficiency of service"*****. The District Consumer Disputes Redressal Commission, Bengaluru Urban, has jurisdiction (§34) because the value of services in question is below ■1 crore.

Relief available:

- Compensation for loss suffered (§49(2)(d))
- Removal of deficiency (restoration)
- Litigation cost

4. Weak / Limited Claims

4.1 Economic Loss (Home-based Work)

Domestic tariff consumers must produce ****audited revenue records**** or hold a commercial connection to claim full business loss. Absent such proof, compensation is capped at the statutory outage allowance (■50/day). Claim for higher tortious damages therefore ****weak****.

4.2 Misrepresentation / Unfair Trade Practice

Mere SMS updates promising "best efforts" do not amount to a clear, time-bound promise under §2(47). Hence ****misrepresentation not made out****.

5. Invalid Claim

5.1 Breach of Consideration / Uninterrupted Supply Right

The Electricity Act 2003 §43 creates a right to ****supply on request****, not an unqualified right to uninterrupted supply. Scheduled or emergency outages are expressly permitted. Hence no breach of contract or failure of consideration.

6. Evidence Checklist

- [] Copy of written complaint dated 3 Mar 2026 (No. 456789)
- [] BESCOM acknowledgment / SMS trail
- [] Photographs or log showing outage duration (neighbour affidavits, UPS logs, etc.)
- [] Salary or revenue proof if claiming income loss (invoices, bank statements, tax returns)
- [] Copy of BESCOM Citizen Charter (to show 24-h promise)
- [] Latest electricity bill (to prove consumer status)

7. Recommended Next Steps

1. File a **consumer complaint**** before the District Commission, Bengaluru Urban, within two years from 3 Mar 2026 (CPA 2019 §69).**

2. Prayer for relief:

- a. Direction to restore supply (already done, but include for completeness)
- b. **■300** statutory compensation under Reg. 34
- c. **■___** for provable economic loss (or delete if no proof)
- d. **■25,000** litigation cost and mental agony (commensurate with consumer-forum precedents)

3. Alternatively, pursue **BESCOM internal grievance redressal**** (three-tier) to obtain faster **■300** payout, then escalate if unresolved within 30 days.**

8. Limitations & Weaknesses

- Income-loss head likely capped absent commercial-category proof
- No punitive damages under CPA 2019 for mere delay; need gross negligence or malicious intent
- Outage cause (force majeure, maintenance, cable theft) not yet disclosed; BESCOM may raise statutory exemption defences

9. Conclusion

Strong statutory deficiency claim under Reg. 34 and CPA 2019 for the seven-day delay. Immediate compensation of **■300** plus costs is virtually certain; larger economic loss depends on documentary proof of revenue and connection category.